THE STAPLE COTTON (EXCISE DUTY) ORDINANCE, 1978

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THE STAPLE COTTON (EXCISE DUTY) ORDINANCE, 1978

ORDINANCE NO. XXX OF 1978

[25th June, 1978]

An Ordinance to provide for the levy of a duty of excise on staple cotton produced by ginning factories and sold to textile mills.

WHEREAS it is expedient to provide for the levy of excise duty on staple cotton produced by ginning factories and sold to textile mills;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977, (C.M.L.A. Order No. I of 1977), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be called the Staple Cotton (Excise Duty) Ordinance, 1978.

(2) It shall come into force at once and shall be deemed to have taken effect on the first day of July, 1976:

Provided that, unless the Federal Government, by notification in the official Gazette, otherwise directs, it shall not apply to staple cotton of any crop following the crop of 1976-77 and shall stand repealed on the first day of July, 1978.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Board" means the Central Board of Revenue constituted under the Central Board of Revenue Act, 1924 (IV of 1924);

(b) "Corporation" means the Cotton Trading Corporation of Pakistan;

(c) "factory" means a cotton ginning factory producing staple cotton for sale;

(d) "sale price" means the price of four hundred and fifteen rupees per maund, inclusive of excise duty, at which staple cotton is sold by the Corporation to a textile mill;

(e) "staple cotton" means ginned cotton other than desi-cotton

3. Rate of duty. There shall be levied and collected a duty of exercise on staple cotton produced and sold by a factory, whether directly or through the Corporation, to any buyer, other than the Cotton Export Corporation, at the rates set forth in the Schedule:

Provided that, where the staple cotton is sold through the Corporation at the rates prescribed by the Corporation, the duty shall be payable by the Corporation out of the sale price.

4. Manner of payment of duty. The duty shall be paid at the time of sale and before the delivery of staple cotton to a textile mill.

5. Exemptions. The Board may, by special order in each case, exempt from the payment of the whole or any part of the duty leviable under this Ordinance, under circumstances of special nature to be stated in such order, any staple cotton on which such duty is leviable.

6. Power to make rules. The Central Board of Revenue may, by notification in the official Gazette, make rules to carry into effect the purposes of this ordinance.

7. Application of the provisions of the Central Excises and Salt Act, 1944. The provisions of the Central Excises and Salt Act, 1944 (I of 1944), and the rules made thereunder shall, in so far as they are not inconsistent with the provisions of this Ordinance and do not affect the levy and collection of duty under this Ordinance, apply to staple cotton and to the recovery of the duty not paid.

SCHEDULE

(See section 3)

S.No.	Description	Rate of duty
1	Staple Cotton produced by cotton ginning factories in the public sector which are under the administrative control of the Cotton Trading Corporation of Pakistan.	Sixty rupees per maund
2	Staple Cotton produced by cotton ginning factories in the private sector which are not under the administrative control of the Cotton Trading Corporation of Pakistan.	Fifty-five rupees per maund.

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THE RAILWAYS (LOCAL AUTHORITIES' TAXATION) ACT, 1941

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1. Short title and extent
2. Definitions
3. Liability of railways to taxation by local authorities
4. Modification of existing liability to taxation
5. Saving

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THE RAILWAYS (LOCAL AUTHORITIES' TAXATION) ACT, 1941

ACT NO. XXV OF 1941

[26th *November*, 1941]

An Act to regulate the extent to which railway property shall be liable to taxation imposed by an authority within a Province.

WHEREAS it is expedient to regulate the extent to which property vested in [1][Government] for the purposes of the Central Government, being property of a railway, shall be liable to taxation imposed by an authority within a Province;

It is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the Railways (Local Authorities Taxation) Act, 1941.

[2][(2) It extends to the whole of Pakistan.]

2. Definitions. In this Act, —

(a) "local authority" means a local authority as defined in the General Clauses Act, 1897 (X of 1897), and includes any authority legally entitled to or entrusted with the control or management of any fund for the maintenance of watchmen or for the conservancy, of a river;

(b) "railway administration" has the meaning assigned to the expression in clause (6) of section 3 of the Railways Act, 1890 (IX of 1890).

3. Liability of Railways to taxation by local authorities.— (1) In respect of property vested in [1][* * *] the [3][Federal Government], being property of a railway, a railway administration shall be liable to pay any tax in aid of the funds of any local authority, if the [3][Federal Government], by notification in the official Gazette, declares it to be so liable.

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(2) While a notification under sub-section (1) is in force, the railway administration shall be liable to pay to the local authority either the tax mentioned in the notification or in lieu thereof such sum, if any, as a person appointed in this behalf by the [3][Federal Government] may, having regard to the services rendered to the railway and all the relevant circumstances of the case, from time to time determine to be fair and reasonable. The person so appointed shall be a person who is or has been a Judge of a High Court or a District Judge.

[1]Subs. and omitted by the Central Laws (Adaptation) Order 1961 (Order No. 1 of 1961), Art. 2.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch.
[3]Subs. by the Federal Adaptation Order of Laws Order, 1975 (P. O. No. 1 of 1975), Art. 2 and Table.

5. Saving. Nothing in this Act shall be construed as debarring any railway administration administering a railway from entering into a contract with any local authority for the supply of water or light or for the scavenging of railway, premises or for any other service which the local authority may be rendering or be prepared to render within any part of the local area under its control.

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THE PROVISIONAL COLLECTION OF TAXES ACT, 1931

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1. Short title
2. Definition
3. Power to make declarations under this Act
4. Effect of declarations under this Act, and duration thereof
5. Certain refunds to be made, or demand to be raised, when declarations cease to have effect
6. [Repealed]

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THE PROVISIONAL COLLECTION OF TAXES ACT, 1931

ACT No. XVI of 1931

[28th *September*, 1931]

An Act to amend the law providing for the immediate effect for a limited period of provisions in Bills relating to the imposition [1][, increase or reduction] or duties of customs or excise [2][or sales tax].

WHEREAS it is expedient to amend the law providing for the immediate effect for a limited period of provisions in Bills relating to the imposition [1][, increase or reduction] of duties of customs or excise [2][or sales tax] ; It is hereby enacted as follows :—

1. Short title. This Act may be called the Provisional Collection of Taxes Act, 1931.

2. Definition. In this Act, a "declared provision" means a provision in a Bill in respect of which a declaration has been made under section 3.

3. Power to make declarations under this Act. Where a Bill to be introduced in the [3][Central Legislature] on behalf of Government provides for the imposition [1][, increase or reduction] of a duty of customs or excise [2][or sales tax] the [4][Federal Government] may cause to be inserted in the Bill a declaration that it is expedient in the public interest that any provision of the Bill relating to such imposition [1][, increase or reduction] shall have immediate effect under this Act.

4. Effect of declarations under this Act, and duration thereof.—[2][(1) Subject to the provisions of sub-section (2), a declared provision shall have the force of law with immediate effect as if enacted on the day on which the Bill is introduced.]

(2) A declared provision shall cease to have the force of law under the provisions of this Act—

(*a*) when it comes into operation as an enactment, with or without amendment, or

(*b*) when the [4][Federal Government], in pursuance of a motion passed by [5][* * *] the [3][Central Legislature] directs, by notification in the [3][official Gazette], that it shall cease to have the force of law, or

(*c*) if it has not already ceased to have the force of law under clause (*a*) or clause (*b*), then on the expiry of the sixtieth day after the day on which the Bill containing it was introduced.

[1][*5. Certain refunds to be made, or demand to be raised, when declarations cease to have effect.—(*1) Where a declared provision comes into operation as an enactment in an amended form before the expiry of the sixtieth day after the day on which the Bill containing it was introduced, —

[1]Subs. by the Finance Act, 1990 (Act No. VII of 1990), s. 2.
[2]Ins. by the Finance Act, 1967 (Act No. XII of 1967), s. 13 and Sixth Sch.,
[3]Subs. by Adaptation Order, 1937.
[4]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.
[5]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), s. 3 and Sch.

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(a) refunds shall be made of all duties or taxes coliected which would not have been collected if the provision adopted in the enactment had been the declared provision ; or

(b) demands shall be raised of all duties or taxes not collected which would have bee collected if the provision adopted in the enactment had been the declared provision :

Provided that the rate, at which refunds of any duty or tax may be made, or demand may be raised, under this sub-section shall not exceed the difference between the rate of such duty or tax proposed in the declared provision and the rate of such duty or tax in force when the Bill was introduced.

(2) Where a declared provision ceases to have the force of law under clause (b) or clause (c) of sub-section (2) of section 4, —

(a) refunds shall be made of all duties or taxes which would have not been collected if the declaration in respect thereof had not been made ; or

(b) demands shall be raised of all duties or taxes not collected which would have been collected if the declaration in respect thereof had not been made.]

6. [1][*Repealed*]

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Date: 08-10-2024

[1]Repealed by the Repealing Act, 1938 (Act No. I of 1938), s. 2 and Schedule.

THE MUNICIPAL TAXATION ACT, 1881

CONTNETS

Preamble

1. Short title

2. "Municipal Committee" defined

3. Power to prohibit levy of tax

3A. Power of Provincial Government to prohibit levy of taxes on it

4. Federal Government to pay taxes referred to in section 3

5. Payments to be made in lieu of taxes referred to in section 3A

6. Decision of questions arising under this Act

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THE MUNICIPAL TAXATION ACT, 1881

[1]ACT No. XI OF 1881

[*25th February. 1881*]

An Act to give power to prohibit the levy of municipal taxes in certain cases.

Preamble. WHEREAS it is expedient to empower the [2][Government] to prohibit, in certain cases, the levy of municipal taxes payable by persons in the military [3][naval] [4][or air-force] service or by the [5][provincial Government]; It is hereby enacted as follows:—

1. Short title. This Act may be called the Municipal Taxation Act, 1881.

Local extent. It extends to 6[the whole of Pakistan];

[7]* * * * * *

2. "Municipal Committee" defined. In this Act "Municipal Committee" [8] includes a Municipal Corporation or a body of Municipal Commissioners constituted by or under the provisions of any enactment for the time being in force.

[9][**3. Power to prohibit Levy of tax**.—(1) Notwithstanding anything contained in any enactment for the time being in force, the Federal Government may, be an order in writing, prohibit the levy by a Municipal Committee of any specified tax payable by any person subject to the Pakistan Army Act, 1952 (XXXIX of 1952), the Pakistan Navy Ordinance, 1961 (XXXV of 1961), or the Pakistan Air Force Act, 1953 (VI of 1953), who is compelled by the exigencies of military, naval or airforce duty to reside within the limits of a municipality.

(2)The Federal Government may, by a like order, rescind any such prohibition.]

[10][**3A**. **Power of Provincial Government to prohibit levy of taxes on it.** Notwithstanding anything in any enactment for the time being in force, the Provincial Government may by an order in writing prohibit the levy by a Municipal Committee of any specified tax payable by the Provincial Government and may by a like order rescind any such prohibition.]

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1880, Pt. V, p. 193 ; for Proceedings in Council, *see ibid.* Supplement, pp. 904 and 915 ; and *ibid,* 1881, Supplement, p. 250.
This Act has been amended to the extent of Islamabad Capital Territory, *see* Ordinance No. 27 of 1981, s. 5 and 4th Sch.
[2]Subs. by A.O., 1949. Sch., for "Governor-General in Council"
[3]Ins. by the Amending Act, 1934 (35 of 1934), s. 2 and Sch.
[4]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s. 2 and Sch. 1.
[5]Subs. by A.O., 1949, Sch., for "Secretary of State for India in Council".
[6]Subs. by the Central Laws (Statute Reform), Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955, for " all the Provinces and the Capital of the Federation" which has been subs. by A.O., 1949, Arts. 3 (2) and 4, for "the whole of British India" .
[7]The words "and shall come into force at once" rep. by the Repealing and Amending Act, 1914 (10 of 1914).
[8]For the purposes of this Act, every Cantonment Board as defined in the Cantonments Act, 1924 (2 of 1924) is deemed to be a Municipal Committee., *see* s. 97 of the latter Act.
[9]Subs. by Ord. XXVII of 1981, s.5 and Sch. IV (only to the extent of ICT).
[10]Section 3A ins. by A. O., 1937.

4. Federal Government to pay taxes referred to in section 3. So long as any order made under section 3, prohibiting the levy of a tax on any person mentioned in [1]* * * that section remains in force, the [2][Federal Government] shall be liable to pay to the Municipal Committee mentioned in the order the amount which otherwise would have been payable to such Committee by such person:

Provided that the [3][Federal Government] shall not be liable to pay any sum in respect of any horse which such person is bound, by the regulations of the service to which he belongs, to keep.

5. Payments to be made in lieu of taxes referred to in section 3A. So long as any order made under [4][section 3A] prohibiting the levy of any tax payable by the [2][Provincial Government], remains in force, the said [5][Provincial Government] shall be liable to pay to the Municipal Committee, in lieu of such tax, such sums(if any) as an officer from time to time appointed in this behalf by the [6][Provincial Government] may, having regard to all the circumstances of the case, from time to time determine to be fair and reasonable.

6. Decision of questions arising under this Act. If any question arises whether any duty is military [7][, naval] [8][or air-force] duty within the meaning of this Act, the decision of the [9][Federal Government] thereon shall be conclusive.

If any question arises whether any person is compelled as aforesaid to reside within the limits of a municipality or is bound as aforesaid to keep any horse, the decision thereon of such authority as the [2][Federal Government] may, from time to time, appoint in this behalf shall be conclusive.

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Date: 16-09-2024

[1]The words "clause (a) of" rep., by A.O.,1937.
[2]Subs. by F. A. O.,1975, Art. 2 and Table, for "Central Government" which was subs. by A. O. ,1937, for "Secretary of State for India in Council".
[3]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central. Government" which was subs. by A.O. 1937, for "said Secretary of State in Council".
[4]Subs. by A. O., 1937, for "section 3".
[5]Subs. *ibid.,* for "Secretary of State in Council".
[6]Subs. by A.O., 1937, for "L.G.".
[7]Ins. by the Amending Act, 1934 (35 of 1934), s. 2 and Sch.
[8]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s. 2 and Sch I.
Subs. by F.A.O., 1975, Art.2 and Table for "Central Government" which was subs. by A.O., 1937, for "G.G. in C".

THE MINES MATERNITY BENEFIT ACT, 1941

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7. Notice of delivery to be given to manager
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THE MINES MATERNITY BENEFIT ACT, 1941

ACT No. XIX OF 1941

[26th November, 1941]

An Act to regulate the employment of women in mines for a certain period before and after childbirth and to provide for payment of maternity benefit to them.

WHEREAS it is expedient to regulate the employment of women in mines for a certain period before and after childbirth and to provide for payment of maternity benefit to them;

It is hereby enacted as follows :—

1. Short title, extent and commencement.—(1) This Act may be called the Mines Maternity Benefit Act, 1941.

[1][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date[2] as the [3][Federal Government] may, by notification in the official Gazette, appoint.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(al) [4][* * * * * * *]

(a) "child" includes a still-born child;

(b) "Chief Inspector", "Inspector", "employed", "mine" and "owner" have the meanings assigned, respectively, to these expressions in section 3 of the Mines Act, 1923 (IV of 1923);

(c) "manager" means the manager of the mine appointed in accordance with the provisions of the Mines Act, 1923 (IV of 1923);

(d) "maternity benefit" means the payment referred to in section 5;

(e) "prescribed" means prescribed by rules made under this Act.

[5]**[3. Prohibition of employment of, and work by women during certain period.**— (1)] No owner or manager of a mine shall knowingly employ a woman and no woman shall engage in employment in any mine during the [6][six weeks] following the day on which she is delivered of a child.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch.
[2]Brought into force with effect from the 28th December 1942, see Gazette of India, 1943, Pt. I, p. 32.
[3]Subs. by the Federal Adaptation of laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[4]Omitted by the Central Adaptation of Laws Order, 1964 (P. O No. 1 of 1964), Art. 2 and Sch.
[5]Re-numbered by Act No. X of 1945, s. 2.
[6]Subs. by Act No. XXI of 1950, s. 2.

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[1][(2) No owner or manager of a mine shall employ any woman below ground in the mine—

(a) if he has reason to believe or if she has informed him that she is likely to be delivered of a child within ten weeks;

(b) if she has to the knowledge of the management been delivered of a child within the preceding twenty-six weeks;

(c) during the period of ten weeks following the twenty six weeks referred to in clause *(b)*—

(i) for more than four hours in a day unless a *creche* is provided at the mine;

(ii) in any case, for more than four hours at any one time :

Provided that where the woman informs the management that the child of which she was delivered has died, the provisions of clause *(c)* shall not apply after the management has with due diligence verified the correctness of her statement.]

4. Right to obtain leave of absence in pregnancy and after delivery.—(1) If any woman employed in a mine who is pregnant gives notice either orally or in writing in the prescribed form to the manager of the mine that she expects to be delivered of a child within [2][one and a half months] from the date of such notice, the manager shall permit her if she so desires to absent herself from work up to the day of her delivery and such absence shall be treated as a period of authorised absence on leave:

Provided that [1][except in the case of a woman employed below ground in the mine] the manager may, on undertaking to defray the cost of such examination, require the woman to be examined by a qualified medical practitioner or midwife, and, if the woman refuses to submit to such examination or is certified on such examination as not pregnant or not likely to be delivered of a child within [2][one and a half months], he may refuse such permission.

[1][(2) If any woman employed below ground in a mine gives notice either orally or in writing in the prescribed form to the manager of the mine that she expects to be delivered of a child within ten weeks from the date of such notice, the manager may, on undertaking to defray the cost of such examination, require the woman to be examined within three days by a qualified medical practitioner or midwife, and shall permit her if she so desires to absent herself from work in any capacity in the mine prior to the said examination, and unless he obtains a certificate that the woman is not pregnant or not likely to be delivered of a child within ten weeks or the woman refuses to submit to such examination, up to the day of her delivery, and such absence shall be treated as a period of authorised absence on leave.

(3) The examination referred to in the proviso to sub-section (1) or in sub-section (2) shall, if the woman so desires, be carried out by a woman.

(4) The absence of a women in the period during which she is entitled to maternity benefit under this Act shall be treated as authorised absence on leave.]

[1]Added and subs. by Act No. X of 1945, s. 2-3.
[2]Subs. by Act No. XXI of 1950, s. 3.

[1]**[5. Right to and liability for payment of maternity benefit.**—(1)] Every woman [1][other than a woman to whom the provisions of sub-section (2) apply] employed in a mine who has been continuously employed in that mine or in mines belonging to the owner of that mine for a period of not less than six months preceding the date of her delivery shall, if she complies with the conditions imposed by this Act, be entitled to receive, and the owner of the mine shall be liable to make to her, in accordance with the provisions of this Act, a payment at the rate of [1][twelve annas] a day for every day [2][* * *] during the [3][six weeks] immediately preceding and including the day of her delivery and for each day of the [3][six weeks] following her delivery:

[2][Provided that no such payment shall be made for any day on which she attends work and receives payment there for during the [3][six weeks] preceding her delivery.]

[1][(2) Every woman who has worked below ground in a mine or mines of the same owner for not less than ninety days in all during a period not exceeding six months immediately preceding the date on which clause *(a)* of sub-section (2) of section 3 becomes applicable to her case shall, if she complies with the other conditions imposed by this Act, be entitled to receive, and the owner of the mine shall be liable to make to her, in accordance with the provisions of this Act, a payment at the rate of six rupees a week for the ten weeks immediately preceding her delivery and for the six weeks following her delivery.]

Explanation.— Periods of casual absence as defined by rules made under section 15 or authorised absence on account of illness or leave shall count as employment in determining whether employment has been continuous.

6. Payment of bonus.—(1) The [4][Provincial Government] may by rules made under section 15 provide that a woman entitled to maternity benefit under this Act shall, if at the time of her delivery she utilized the services of a qualified midwife or other trained person, receive in addition to the maternity benefit due to her a bonus not exceeding in amount three rupees:

Provided that she shall not receive such bonus if at the place chosen by her for her confinement she would have been entitled free of charge to the services of a qualified midwife or other trained person provided by the owner of the mine.

(2) Such rules may further provide for the determination by the Provincial Government of the amount of the bonus, and of the qualifications which shall be possessed by qualified midwives and other trained persons for the purposes of this section.

7. Notice of delivery to be given to manager. A woman entitled to maternity benefit under this Act, unless she has given the notice referred to in sub-section (1) [5][or sub-section (2), as the case may be] of section 4, shall on being delivered of a child give notice of her delivery in the prescribed manner to the manager before the expiry of seven days from the date of her delivery, and shall before the expiry of six months from such date furnish proof of the prescribed nature to the manager both of her delivery and of the date of her delivery:

Provided that a woman giving notice under section 4 or this section may therein nominate a person for the purposes of sub-section (2) of section 9.

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[1]Re-numbered, subs and added by Act No. X of 1954, s. 4.
[2]Omitted and added by Act No. XVIII of 1943, s. 2.
[3]Subs. by Act No. XXI of 1950, s. 4.
[4]Subs. by the Central Adaptation of Laws Order, 1964 (P. O No. 1 of 1964), Art. 2 and Sch.
[5]Ins. by Act No. X of 1945, s. 5.

8. Payment of maternity benefit.—(1) Where a woman entitled to maternity benefit has given the notice referred to in sub-section (1) of section 4 and has obtained permission to absent herself from work up to the date of her delivery, the manager shall either at once or within three days pay to her maternity benefit for [1][six weeks] in advance.

[2][(1A) Where a woman entitled to maternity benefit has given the notice referred to in sub-section (2) of section 4, the manager shall within three days pay to her maternity benefit for ten weeks in advance, unless, within the said three days as a result of the examination referred to in that sub-section, he obtains a certificate that she is not pregnant or not likely to be delivered of a child within ten weeks or the woman refuses to submit to such examination.]

(2) A woman entitled to maternity benefit who has been delivered of a child shall, on furnishing the proof referred to in section 7, —

(a) if she has received an advance payment under sub-section (1) [2][or sub-section (1A)] be paid the balance of the maternity benefit due to her at the end of the [1][sixth week] from the date of her delivery or within three days of the furnishing of proof, whichever date is later;

(b) if she has received no such advance payment,—

(i) if the proof is furnished, before the end of the [1][sixth week] from the date of delivery, be paid at once or within three days so much of the maternity benefit as is then due to her, and be paid the balance at the end of the said [1][sixth week];

(ii) if the proof is furnished after the end of the [1][sixth week] from the date of delivery, be paid at once or within three days the whole amount of the maternity benefit due to her.

9. Disposal of maternity benefit in case of death of women entitled to receive it.— (1) If a woman entitled to maternity benefit who has received an advance under sub-section (1) [2][or sub-section (1A)] of section 8 dies before being delivered of the child, the advance shall not be recoverable.

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(2) If a woman entitled to maternity benefit having been delivered of a child dies before payment of the maternity benefit, or, where an advance under sub-section (1) [2][or sub-section (1A)] of section 8 has been made, of the balance of the maternity benefit due to her is made, the amount due to her up to the date of her death shall, on the prescribed proof of the birth and date of the birth of the child and of the death and date of death of the woman being furnished at any time before the expiry of six months from the date of delivery, be paid if the child is living to the person who undertakes the care of the child, and if the child is not living to the person nominated by her under the proviso to section 7 or if she has made no such nomination to the legal representative of the deceased woman.

[1]Subs. by Act No. XXI of 1950, s. 5.
[2]Ins. by Act No. X of 1945, ss. 6-7.

10. Prohibition of dismissal during or on account of absence from work owing to confinement.— (1) When a woman absents herself from work in accordance with [1][sub-section (1) of section 3 or in circumstances under which in accordance with this Act the absence is to be treated as authorised absence on leave] it shall be unlawful for the manager to dismiss her during or on account of such absence, or to give notice of dismissal on such a day that the notice will expire during such absence.

(2) The dismissal of a women at any time within six months before she is delivered of a child, if the women but for such dismissal would have been entitled to maternity benefit under this Act, shall not have the effect of depriving her of that maternity benefit if the Chief Inspector is satisfied that her dismissal was without sufficient cause.

11. Power of Chief Inspector or Inspector to direct payments to be made.— (1) Any woman claiming that maternity benefit to which she is entitled under this Act and any person claiming that a payment due under sub-section (2) of section 9 is improperly withheld may make a complaint to the Chief Inspector or any inspector [1][or any other officer authorised in this behalf by the [2][Provincial Government]].

(2) On receipt of such complaint or on his own motion without any such complaint being made, the Chief Inspector or Inspector [1][or other officer] may make inquiry or cause an inquiry to be made, and if satisfied that a payment has been wrongfully withheld may direct the payment to be made in accordance with his orders.

12. Penalty for contravention of Act by a woman. Any woman who does any work for which she receives payment in cash or kind after she has been permitted under sub-section (1) of section 4 to absent herself from work, or who engages in employment in any mine in contravention of [1][subsection (1) of section 3], shall be punishable with fine which may extend to ten rupees, and, if she is entitled to maternity benefit under this Act shall forfeit her right to any maternity benefit not already paid to her.

13. Penalty for contravention of Act by owner or manager.—(1) Any owner or manager of a mine, who contravenes any provision of this Act for which no express penalty is provided, shall be punishable with fine which may extend to five hundred rupees.

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(2) The Court imposing the fine may, if the contravention has resulted in depriving a woman of any maternity benefit due to her, order the whole or any part of the fine when paid to be applied in payment of compensation to the woman for any loss caused to her by the contravention of the provision on account of which the fine has been imposed, and an Appellate Court or the High Court in exercise of its powers of revision may also make such order.

14. Cognizance of cases.— (1) No prosecution under this Act shall be instituted except by or with the sanction of the Chief Inspector [1][or of an officer authorised in this behalf by the [2][Provincial Government]].

(2) No Court inferior to that of a Magistrate of the first class shall try an offence punishable under this Act or any rule made thereunder.

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[1]Subs. added and ins. by Act No. X of 1945, ss. 8-11.
[2]Subs. by the Central Adaptation of Laws Order, 1964 (P. O No. 1 of 1964), Art. 2 and Sch.

(3) No Court shall take cognizance of an offence punishable under this Act or any rule made thereunder, unless complaint thereof is made within six months of the date on which the offence is alleged to have been committed:

Provided that in computing the said period of six months any time spent in obtaining the sanction [1][* * *] required by sub-section (1) shall be excluded.

15. Power of Provincial Government to make rules.— (1) The [2][Provincial Government] may, subject to the condition of previous publication, by notification in the official Gazette, make rules to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may—

(a) require the maintenance of registers and records for the purposes of this Act and prescribe the form thereof;

(b) prescribe the form of the notices referred to in section 4 and section 7, and require mines to supply copies thereof to women workers;

(c) regulate the examination of women [1][referred to in] section 4, and the grant of the certificates therein referred to;

(d) prescribe the nature of and the method of furnishing the proof referred to in section 7, section 8 and section 9;

(e) regulate the manner of applying for and paying maternity benefit;

(f) assign duties, to, and regulate the powers of, the Chief Inspector and Inspectors, [1][and the officers authorised by the [2][Provincial Government] referred to in section 11 and sub-section (1) of section 14] for the purposes of this Act.

(3) Any rule made under this section may provide that a contravention thereof shall be punishable with fine which may extend to fifty rupees.

16. Abstract of this Act and the rules made thereunder to be exhibited in mines.— (1) The manager of every mine in which women are employed shall cause an abstract in the local [3][*] language of the provisions of this Act and of the rules made there under to be exhibited in the mine in such manner that they may come to the notice of every woman employed in the mine.

(2) For any contravention of the provisions of this section the manager shall be punishable with fine which may extend to one hundred rupees.

17. Power of Provincial Government to exempt mines from operation of Act. The [2][Provincial Government] may, by notification in the official Gazette, exempt any mine or class of mines from the operation of this Act.

18. Act binding on [4][Government]. The provisions of this Act shall be binding on the [4][Government].

Date: 3-02-2025

[1]Omitted, subs. and ins. by Act No. X of 1945, ss. 11 and 12.
[2]Subs. by the Central Adaptation of Laws Order, 1964 (P. O No. 1 of 1964), Art. 2 and Sch.
[3]Omitted by the Central Adaptation of Central Acts & Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.
[4]Subs. by the Central Laws (Adaptation) Order, 1961 (P. O. No. 1 of 1961), Art. 2 and Sch.

THE MEDICAL AND DENTAL DEGREES ORDINANCE, 1982

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THE MEDICAL AND DENTAL DEGREES ORDINANCE, 1982.

ORDINANCE No. XXVI OF 1982

[*31st October, 1982*]

An Ordinance to repeal and, with certain modifications, re-enact the Medical Degrees Act, 1916

WHEREAS it is expedient to repeal and, with certain modifications, re-enact the Medical Degrees Act, 1916 (VII of 1916);

AND WHEREAS the President is satisfied that circumstances exist which tender it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Medical and Dental Degrees Ordinance, 1982.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, "scientific Medical and Dental System" means the scientific methods of Allopathic Medicine, Obstetrics, Surgery and Dentistry, but does not include the Homoeopathic, Ayurvedic or Unani System of Medicine.

3. Right to confer degrees, etc. The right of conferring, granting or issuing in Pakistan degrees, diplomas, licences, certificates, or other documents stating or implying that the holder, grantee or recipient thereof is qualified to practise scientific Medical and Dental System shall be exerciseable only by the authorities specified in the Schedule and by such other authority as the Federal Government or a Provincial Government may, by notifications in the official Gazette, and subject to such conditions as it thinks fit to impose, authorise in this behalf.

4. Prohibition of unauthorised conferment of degrees, etc. Save as provided by section 3, no person in Pakistan shall confer, grant or issue any degree, diploma, licence, certificate or other document stating or implying that the holder, grantee or recipient is qualified to practise scientific Medical and Dental System.

5. Contravention of section. Whoever contravenes the provisions of section 4 shall punishable with rigorous imprisonment for a term which shall not be less than one year or more than five years and shall also be liable to fine which may extend to fifty thousand rupees; and if the person so contravening is an association, every member of such association who knowingly and wilfully authorises or permits the contravention shall be punishable with rigorous imprisonment for a term which shall not be less than one year or more than five years and shall also be liable to fine which may extend to twenty-five thousand rupees.

6. Penalty for falsely assuming or using Medical and Dental titles. Whoever voluntarily and falsely assumes or uses any title or description or any addition to his name implying that he holds a degree, diploma, licence or certificate conferred, granted or issued by any authority referred to in section 3 or recognised by the Medical and Dental Council of Pakistan or uses any words to give a false impression that he was qualified to practise scientific Medical and Dental System shall be punishable with rigorous imprisonment for a term which shall not be less than one year or more than five years and shall also be liable to fine which may extend to fifty thousand rupees:

Provided that nothing in this section shall apply to the use by any person of any title, description or addition which he uses by virtue of any degree, diploma, licence or certificate conferred upon him or granted or issued to him in any subject other than medicine.

7. Cognizance of offences. No Court shall take cognizance of an offence punishable under this Ordinance except upon a complaint made by the Secretary of the Medical and Dental Council or any person authorised by the Secretary and notified in the official Gazette.

8. Jurisdiction of Magistrate. No Court inferior to that of a Magistrate of the first class shall try an offence punishable under this Ordinance.

9. Offences to be bailable. Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), all offences punishable under this Ordinance shall be bailable.

10. Repeal. The Medical Degrees Act, 1916 (VII of 1916), is hereby repealed.

SCHEDULE

(See section 3)

I. Every University in Pakistan established by an Act of the Federal or Provincial Legislature.

II. College of Physicians and Surgeons of Pakistan.

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THE GOVERNMENT TRADING TAXATION ACT, 1926

CONTENTS

1. Short title and commencement

2. Liability of Provincial Governments to taxation in respect of trading operations

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THE GOVERNMENT TRADING TAXATION ACT, 1926

ACT No. III OF 1926

[24*th* *February*, 1926]

An Act to determine the liability of certain Governments to taxation in [1]*[Pakistan] in respect of trading operations.*

WHEREAS it is expedient to determine the liability to taxation for the time being in force in [1][Pakistan] of [3][* * *] [4][the Government of a Province of Pakistan] in respect of any trade or business carried on by or on behalf of such Government;

It is hereby enabled as follow:—

1. Short title and commencement.—(1) This Act may be called the Government Trading Taxation Act, 1926.

(2) It shall come into force on such date as the [5][Federal Government] may, by notification in the [6][official Gazette], appoint.

[2][**2. Liability of Provincial Governments to taxation in respect of trading operations.**—Where a trade or business of any kind is carried on by or on behalf of the Government of a Province outside that Province, that Government shall, in respect of the trade or business and all operations connected therewith and all income arising in connection therewith and all property occupied for the purposes thereof, be liable to taxation under the Income Tax Ordinance, 1979 (XXXI of 1979), in the same manner and to the same extent as in the like case a company would be liable.]

———————

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Date: 24-03-2025

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th of October, 1955*).
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.
[3]Omitted by the Central Adaptation of Laws Order, 1964 (P. O. No. 1 of 1964), s. 2 and Sch.
[4]Ins. by the Finance Act, 1956 (I of 1956), s. 12.
[5]Subs, by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[6]Subs. by Adaptation Order, 1937.

THE EXCISE (SPIRITS) ACT, 1863

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3. Penalty for breach of such rules

4. Penalty for attempting to render fit for human consumption spirits removed under Act

5. Penalty how levied

6. In case of non-payment of penalty, offender may be detained pending return to distress warrant

7. Imprisonment of offender in case of failure to recover penalty by distress

8. [*Provision of section 11, Act III of 1852, relating to adulteration, not to apply to spirits rendered unfit for consumption under Act] Rep. by the Repealing and Amending Act, 1891 (XII of 1891), s. 2 (1)*

9. Confiscation in cases of conviction under section 3 or 4

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[1][THE EXCISE (SPIRITS) ACT, 1863]

ACT No. XVI OF 1863

[*10th March*, 1863]

An Act to make special provision for the levy of the Excise-duty payable on Spirits used exclusively in Arts and Manufactures or in Chemistry.

Preamble. WHEREAS it is expedient to make special provision for the levy of the excise duty payable on spirits used exclusively in arts and manufactures or in chemistry; It is enacted as follows:—

1. **Duty payable on removal of such spirits from distillery.** Spirits intended to be used exclusively in arts and manufactures or in chemistry may be removed from any licensed distillery in any part of [2][Pakistan] on payment of duty [3][not exceeding five] per cent. on the value of the spirits:

Proviso. Provided that no spirits shall be so removed until they have been effectually and permanently rendered unfit for human consumption.

2. Rules of ascertaining that spirits to be removed have been rendered unfit for human consumption, etc. [4][In each Province] the Board of Revenue, or other authority specially authorized in that behalf by the [5][Federal Government] shall prescribe from time to time, subject to the approval of the [5][Federal Government] rules—

for ascertaining and determining that spirits proposed to be removed for the purposes aforesaid have been effectually and permanently rendered unfit for human consumption, as required by section 1 of this Act;

for causing such spirits to be so rendered, if necessary, by its own officers at the expense of the person who wishes to remove them; and

for fixing the value of the spirit on which the *ad valorem* duty shall be levied.

3. Penalty for breach of such rules. Every person who shall willfully contravene any rule prescribed by the Board of Revenue, or other authority as aforesaid, under the last preceding section of this Act, shall be liable on conviction before any officer exercising the powers of a Magistrate to a penalty not exceeding five hundred rupees for every such offence.

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[1]Short title given by the Short Titles Act, 1897 (14 of 1897).
For Statement of Objects and Reasons, *see* Calcutta Gazette, 1862, p. 4063, and for Proceedings in Council relating to the Bill, *see ibid.,* Supplement, p. 449; and *ibid.,* 1863, p. 106.
The Act was declared to be in force in all the Provinces and the Capital of the Federation, except the Scheduled Districts, by the Laws Local Extent Act, 1874 (15 of 1874), s. 3.
The Act was repealed:—
in Bombay by the Bombay Abkari (Amdt.) Act, 1912 (Bom. 12 of 1912); in the Punjab, by the Punjab Excise Act, 1914 (Pun. 1 of 1914).
This Act has been extended and shall be deemed to have been so extended to the whole of Pakistan on the 14th day of October, 1955, by Ord. 21 of 1960, s. 3 and 2nd Sch.
[2]Subs. *ibid.*, for "the Province and the Capital of the Federation", which was subs. for "British India" by A. O., 1949, Arts. 3(2) and 4.
[3]Subs. for "calculated at ten" by s. 6 of Act 8 of 1894.
[4]Ins. By A.O., 1937.
[5]The words "Central Government", which were previously subs. by A.O., 1937 for "L.G.", have been subs. by F.A.O., 1975 (4 of 1975), Art.2 and Sch., to read as above.

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4. Penalty for attempting to render fit for human consumption spirits removed under Act. Every person who shall attempt, or shall connive at an attempt, to render fit for human consumption, spirits removed from a distillery under the provisions of this Act, shall be liable to a penalty not exceeding one thousand rupees;

and the possessor of such spirits on which such attempt has been made, or which may have been rendered fit for human consumption, shall be liable on conviction before any officer exercising the powers of a Magistrate, to a penalty not exceeding five hundred rupees.

5. Penalty how levied. Any penalty imposed under either of the last two preceding sections may in case of non-payment be levied by distress and sale of the goods and chattels of the offender, by warrant under the hand of the officer by whom such penalty was imposed.

6. In case of non-payment of penalty, offender may be detained pending return to distress warrant. In case any such penalty shall not be forthwith paid, any such officer may order the offender to be apprehended and detained in safe custody, until the return can be conveniently made to such warrant of distress, unless the offender shall give security to the satisfaction of such officer for his appearance at such place and time as shall be appointed for the return of the warrant of distress.

7. Imprisonment of offender in case of failure to recover penalty by distress. If upon the return of such warrant it shall appear that no sufficient distress can be had whereon to levy such penalty, and the same shall not be forthwith paid, or

in case it shall appear to the satisfaction of such officer by the confession of the offender or otherwise that he has not sufficient goods and chattels whereupon such penalty could be levied if a warrant of distress were issued,

any such officer may by warrant under his hand commit the offender to the civil Jail, there to be imprisoned, according to the discretion of such officer, for any term not exceeding two calendar months when the amount of penalty shall not exceed fifty rupees, and for any term not exceeding four-calendar months when the amount shall not exceed one hundred rupees, and for any term not exceeding six calendar months in any other case, the commitment to be determinable in each of the cases aforesaid on payment of the amount.

8. [*Provision of section* 11, *Act III of* 1852, *relating to adulteration, not to apply to spirits rendered unfit for consumption under Act.*] *Rep. by the Repealing and Amending Act,* 1891 *(XII of* 1891), s. 2 (1).

9. Confiscation in cases of conviction under section 3 or 4. In every case of conviction under section 3 or section 4 of this Act, the liquor or spirits with the cask or vessel containing in the same, and the cart, boat and animal or animals employed in carrying such liquor or spirit, shall be liable to confiscation.

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THE COMPETITION ACT, 2010.

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THE COMPETITION ACT, 2010

ACT NO. XIX OF 2010

[6th October, 2010]

An Act to provide for free competition in all spheres of commercial and economic activity to enhance economic efficiency and to protect consumers from anti competitive behavior.

WHEREAS it is expedient to make provisions to ensure free competition in all spheres of commercial and economic activity to enhance economic efficiency and to protect consumers from anti-competitive behavior and to provide for the establishment of the Competition Commission of Pakistan to maintain and enhance competition; and for matters connected therewith or incidental thereto;

It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent, application and commencement.— (1) This Act may be called the Competition Act, 2010.

(2) It extends to the whole of Pakistan.

(3) It shall apply to all undertakings and all actions or matters that take place in Pakistan and distort competition within Pakistan.

(4) It shall come into force at once.

2. Definitions.— (1) In this Act, unless there is anything repugnant in the subject or context;—

(a) "acquisition" means any change of control of any undertaking by way of acquisition of Shares, assets or any other means;

(b) "agreement" includes any arrangement, understanding or practice, whether or not it is in writing or intended to be legally enforceable;

(c) "Chairman" means the Chairman of the Commission and includes the Acting Chairman;

(d) "Commission" means the Competition Commission of Pakistan established under section 12;

(e) "dominant position" of one undertaking or several undertakings in a relevant market shall be deemed to exist if such undertaking or undertakings have the ability to behave to an appreciable extent independently of competitors, customers, consumers and suppliers and the position of an undertaking shall be presumed to be dominant if its share of the relevant market exceeds forty percent;

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(f) "goods" includes any item, raw material, product or by-product which is sold for consideration;

(g) "Member" means a member of the Commission;

(h) "merger" means the merger, acquisition, amalgamation, combination or joining of two or more undertakings or part thereof into an existing undertaking or to form a new undertaking; and expression "merge" means to merge, acquire, amalgamate, combine or join, as the context may require;

(i) "Minister" means the Federal Minister for Finance and in his absence, the Adviser to the Prime Minister on Finance;

(j) "Ordinance" means the Companies Ordinance, 1984 (XLVII of 1984);

(k) "relevant market" means the market which shall be determined by the Commission with reference to a product market and a geographic market and a product market comprises all those products or services which are regarded as interchangeable or Substitutable by the consumers by reason of the products' characteristics, prices and intended uses. A geographic market comprises the area in which the undertakings concerned are involved in the supply of products or services and in which the conditions of competition are sufficiently homogeneous and which can be distinguished from neighboring geographic areas because, in particular, the conditions of competition are appreciably different in those areas;

(l) "retailer", in relation to the sale of any goods, means a person who sells the goods to any other person other than for re-sale;

(m) "regulations" means the regulations made by the Commission under this Act;

(n) "rules" means the rules made by the Federal Government under this Act;

(o) "services" means a service of any description whether industrial, trade, professional or otherwise;

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(p) "Tribunal" means Competition Appellate Tribunal under section 43 of the Act;

(q) "undertaking" means any natural or legal person, governmental body including a regulatory authority, body corporate, partnership, association, trust or other entity in any way engaged, directly or indirectly, in the production, supply, distribution of goods or provision or control of services and shall include an association of undertakings; and

(r) "wholesaler", in relation to the sale of any goods, means a person who purchases goods and sells them to any other person for re-sale.

(2) The words and expressions used but not defined in this Act shall have the same meanings respectively assigned to them in the Ordinance.

CHAPTER II

PROHIBITION OF ABUSE OF DOMINANT POSITION, CERTAIN AGREEMENTS, DECEPTIVE MARKETING PRACTICES AND APPROVAL OF MERGERS

3. Abuse of dominant position.— (1) No person shall abuse dominant position.

(2) An abuse of dominant position shall be deemed to have been brought about, maintained or continued if it consists of practices which prevent, restrict, reduce or distort competition in the relevant market.

(3) The expression "practices referred to in sub-section (2) shall include, but are not limited to—

(a) limiting production, sales and unreasonable increases in price or other unfair trading conditions;

(b) price discrimination by charging different prices for the same goods or services from different customers in the absence of objective justifications that may justify different prices;

(c) tie-ins, where the sale of goods or service is made conditional on the purchase of other goods or services;

(d) making the conclusion of contracts subject to acceptance by the other parties of supplementary obligations which by their nature or according to commercial usage, have no connection with the subject of the contracts;

(e) applying dissimilar conditions to equivalent transactions on other parties, placing them at a competitive disadvantage;

(f) predatory pricing driving competitors out of a market, prevent new entry, and monopolize the market;

(g) boycotting or excluding any other undertaking from the production, distribution or sale of any goods or the provision of any service; or

(h) refusing to deal.

4. Prohibited agreements.— (l) No undertaking or association of undertakings shall enter into any agreement or, in the case of an association of undertakings, shall make a decision in respect of the production, supply, distribution, acquisition or control of goods or the provision of services which have the object or effect of preventing, restricting, or reducing competition within the relevant market unless exempted under section 5.

(2) Such agreements include, but are not limited to—

(a) fixing the purchase or selling price or imposing any other restrictive trading conditions with regard to the sale or distribution of any goods or the provision of any service;

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(b) dividing or sharing of markets for goods or services, whether by territories, by volume of sales or purchases, by type of goods or services sold or by any other means;

(c) fixing or setting the quantity of production, distribution or sale with regard to any goods or the manner or means of providing any services;

(d) limiting technical development or investment with regard to the production, distribution or sale of any goods or the provision of any service; or

(e) collusive tendering or bidding for sale, purchase or procurement of any goods or services.

(f) applying dissimilar conditions to equivalent transactions with other trading parties, thereby placing them at a disadvantage; and

(g) make the conclusion of contracts subject to acceptance by the other parties of supplementary obligations which, by their nature or according to commercial usage, have no connection with the subject of such contracts.

(3) Any agreement entered into in contravention of the provision in sub-section (1) shall be void.

5. Individual exemption.— (1) The Commission may grant an exemption from section 4 with respect to a particular practice or agreement, if a request for an exemption has been made to it by a party to the agreement or practice and the agreement is one to which section 9 applies.

(2) The exemption under sub-section (1) may be granted subject to such conditions as the Commission considers it appropriate to impose and has effect for such period as the Commission considers appropriate.

(3) That period must be specified in the grant of the exemption.

(4) An individual exemption may be granted so as to have effect from a date earlier than that on which it is granted.

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(5) On an application made in such a way as may be specified by the rules made under section 55, the Commission may extend the period for which an exemption has effect; but, if the rules so provide, the Commission may do so only in specified circumstances.

6. Cancellation, etc., of individual exemptions.— (1) If the Commission has reasonable grounds for believing that there has been a material change of circumstances since it granted an individual exemption, it may by notice in writing—

(a) cancel the exemption;

(b) vary or remove any condition or obligation; or

(c) impose one or more additional conditions or obligations.

(2) If the Commission has reasonable suspicion that the information on which it based its decision to grant an individual exemption was incomplete, false or misleading in a material

particular, the Commission may by notice in writing take any of the steps mentioned in sub-section (1).

(3) Breach of a condition has the effect of cancelling the exemption.

(4) Failure to comply with an obligation allows the Commission, by notice in writing to take any of the steps mentioned in sub-section (1).

(5) The Commission may act under this section on its own initiative or on complaint made by any person.

7. Block exemption.— (1) If agreements which fall within a particular category of agreements are, in the opinion of the Commission, likely to be agreements to which section 9 applies, the Commission may make a block exemption order giving exemption to such agreements.

(2) A block exemption order may impose conditions or obligations subject to which a block exemption is to have effect.

(3) A block exemption order may provide—

(a) that breach of a condition imposed by the order has the effect of canceling the block exemption in respect of an agreement;

(b) that if there is a failure to comply with an obligation imposed by the order, the Commission may, by notice in writing, cancel the block exemption in respect of the agreement;

(c) that if the Commission considers that a particular agreement is not one to which section 9 applies, the Commission may cancel the block exemption in respect of that agreement.

(4) A block exemption order may provide that the order is to cease to have effect at the end of a period specified in the block exemption order.

8. Block exemption procedure.— (1) Before making a block exemption order, the Commission must—

(a) publish details of its proposed order in such a way as the Commission thinks most suitable for bringing it to the attention of those likely to be affected; and

(b) consider any representations about it which are made to the Commission.

(2) A block exemption order may provide for a block exemption to have effect from a date earlier than that on which the order is made.

9. The criteria for individual and block exemptions.— (1) The Commission may grant individual or block exemption in respect of an agreement, which substantially contributes to—

(a) improving production or distribution;

(b) promoting technical or economic progress, while allowing consumers a fair share of the resulting benefit; or

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(c) the benefits of that clearly outweigh the adverse effect of absence or lessening of competition.

(2) The onus of claiming an exemption under this Act shall lie on the undertaking seeking exemption.

10. Deceptive marketing practices.— (1) No undertaking shall enter into deceptive marketing practices.

(2) The deceptive marketing practices shall be deemed to have been resorted to or continued of an Undertaking resorts to—

(a) the distribution of false or misleading information that is capable of harming the business interests of another undertaking;

(b) the distribution of false or misleading information to consumers, including the distribution of information lacking a reasonable basis, related to the price, character, method or place of production, properties, suitability for use, or quality of goods;

(c) false or misleading comparison of goods in the process of advertising; or

(d) fraudulent use of another's trademark, firm name, or product labeling or packaging.

11. Approval of mergers.— (1) No undertaking shall enter into a merger which substantially lessens competition by creating or strengthening a dominant position in the relevant market.

(2) Notwithstanding the provisions contained in the Act where an undertaking, intends to acquire the shares or assets of another undertaking, or two or more undertakings intend to merge the whole or part of their businesses, and meet the pre-merger notification thresholds stipulated in regulations prescribed by the Commission, such undertaking or undertakings shall apply for clearance from the Commission of the intended merger.

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(3) The concerned undertakings shall submit a pre-merger application to the Commission as soon as they agree in principle or sign a non-binding letter of intent to proceed with the merger.

(4) Application referred to in sub-section (3) shall be in the form and accompanied by a processing fee as may be prescribed by the Commission. The concerned undertakings shall not proceed with the intended merger until they have received clearance from the Commission.

(5) The Commission shall by way of an order reffered to in section 31, decide on whether the intended merger meets the thresholds and the presumption of dominance as determined in section 3. Such order shall be made within thirty days of receipt of the application.

(6) If so determined, the Commission shall initiate a second phase review and for that purpose the Commission may require the concerned undertakings to provide such information as it considers necessary to enable the Commission to make the necessary determination.

(7) Failure to make a determination within the prescribed period of thirty days for the first phase review shall mean that the Commission has no objection to the intended merger.

(8) On initiation of the second phase review the Commission shall, within ninety days of receipt of the requested information under sub-section (6), review the merger to assess whether it substantially lessens competition by creating or strengthening a dominant position in the relevant market, and shall give its decision on the proposed transaction. In case concerned undertakings fail to provide the information requested, the Commission may reject the application.

(9) Failure to render a decision within ninety days shall be deemed to mean that the Commission has no objection to the intended merger.

(10) If after the second phase review the Commission determines that the intended merger substantially lessens competition by creating or strengthening a dominant position, it may nonetheless approve the transaction, if it is shown that—

(a) it contributes substantially to the efficiency of the production or distribution of goods or to the provision of services;

(b) such efficiency could not reasonably have been achieved by a less restrictive means of competition;

(c) the benefits of such efficiency clearly outweigh the adverse effect of the absence or lessening of competition; or

(d) it is the least anti-competitive option for the failing undertaking's assets, when one of the undertakings is faced with actual or imminent financial failure:

Provided that the burden of proof shall lie with the undertaking seeking the approval.

(11) In case the Commission determines that the transaction under review does not qualify the criteria specified in sub-section (10), the Commission may;

(a) prohibit the consummation of the transaction;

(b) approve such transaction subject to the conditions laid by the Commission in its order;

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(c) approve such transaction on the condition that the said undertakings enter into legally enforceable agreements specified by the Commission in its order.

(12) Where an undertaking has consummated the merger without complying with the provisions of sub-section (1) to sub-section (4), the Commission shall, after giving the undertaking an opportunity of being heard, make appropriate orders under section 31.

(13) Where the Commission has granted approval subject to conditions, the Commission may, within one year, review the order of approval of merger on its own or on the application of the undertakings concerned on the ground that it is satisfied that the circumstances of the relevant market or the undertakings have so changed as to warrant review of the conditions imposed.

(14) If the Commission determines that the approval was based on false or misleading information submitted by the undertaking, or the conditions prescribed in the relevant order of the Commission have not been fully complied with, the Commission may after affording the undertakings concerned an opportunity of being heard—

(a) undo such merger or acquisition; or

(b) prescribe modifications or additions in the original order.

CHAPTER III

COMPETITION COMMISSION OF PAKISTAN

12. Establishment of Commission.— (1) There is hereby established a Commission to be called the Competition Commission of Pakistan.

(2) The Commission shall be a body corporate with perpetual succession and common seal, and may sue and be sued in its own name and, subject to and for the purpose of this Act, may enter into contracts and may acquire, purchase, take, hold and enjoy moveable and immovable property of every description and may convey, assign, surrender, yield up, charge, mortgage, demise, reassign, transfer or otherwise dispose of or deal with any moveable or immovable property or any interest vested in it, upon such terms as it deems fit.

(3) The Commission shall be administratively and functionally independent, and the Federal Government shall use its best efforts to promote, enhance and maintain the independence of the Commission.

13. Head Office.– The head office of the Commission shall be in Islamabad and the Commission may establish and close down offices at such other places in Pakistan as it considers necessary.

14. Composition of Commission.– (1) The Commission shall consist of not less than five and not more than seven members:

Provided that the Federal Government may increase or decrease the number of Members, from time to time, as it may consider appropriate.

(2) The Members shall be appointed by the Federal Government and from amongst the Members of the Commission, the Federal Government shall appoint the Chairman.

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(3) All Members of the Commission shall serve on a full-time basis.

(4) Not more than two Members of the Commission shall be employees of the Federal Government.

(5) No person shall be recommended for appointment as a Member unless that person is known for his integrity, expertise, eminence and experience for not less than ten years in any relevant field including industry, commerce, economics, finance, law, accountancy or public administration:

Provided that the Federal Government may prescribe qualifications and experience and mode of appointment of such Members in such manner as it may prescribe.

(6) No person shall be appointed or continued as a Member if he–

(a) has been convicted of an offence involving moral turpitude;

(b) has been or is adjudged insolvent;

(c) is incapable of discharging his duties by reason of physical, psychological or mental unfitness and has been so declared by a registered medical practitioner appointed by the Federal Government;

(d) absents himself from three consecutive meetings of the Commission, without obtaining leave of the Commission;

(e) fails to disclose any conflict of interest at or within the time provided for such disclosure under this Act or contravenes any of the provisions of this Act pertaining to unauthorized disclosure of information; or

(f) deemed incapable of carrying out his responsibilities for any other reason.

(7) No act or proceeding of the Commission shall be invalid by reason of absence of a member or existence of vacancy among its members or any defect in the constitution thereof.

(8) No Member or officer of the Commission shall assume his office until he has made such declaration affirming secrecy and fidelity.

15. The Chairman.— (l) The Chairman shall be the chief executive of the Commission and shall, together with the other Members, be responsible for the administration of the affairs of the Commission.

(2) The Chairman may subject to such conditions as he may deem fit, from time to time delegate all or any of his powers and functions to any of the Members.

16. The Acting Chairman.— At any time when the position of the Chairman is vacant, or the Chairman is unable to perform his functions due to any cause, the Federal Government shall appoint the most senior Member of the Commission to be the Acting Chairman of the Commission until the appointment of a Chairman on a regular basis.

17. Term of office.— The Chairman and Members of the Commission shall be appointed for a term of three years on such salary, terms and conditions of service as the Federal Government may by rules prescribe:

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Provided that the Chairman and Members shall be eligible for re-appointment for such term or terms but shall cease to hold office on attaining the age of sixty-five years or the expiry of the term whichever is earlier.

18. Restriction on employment of the Chairman and other Members in certain cases.— The Chairman and other Members shall not, for a period of one year from the date on which they cease to hold office, accept any employment in, or connected with the management or administration of, any undertaking with has been a party to any investigation before the Commission under this Act.

19. Termination of appointment of Members.— (1) Subject to sub-section (2), the appointment of any Member or the Chairman may, at any time, be revoked and he may be removed from his office by order of the Federal Government if it is found that such person has become disqualified under sub-section (6) of section 14.

(2) Unless a disqualification referred to in section (1) arises from the judgment or order of a Court or tribunal of competent jurisdiction under any relevant provision of applicable law, a Member or the Chairman shall not be removed or his appointment revoked without an enquiry by an impartial

person or body of persons constituted in accordance with such procedure as may be prescribed by rules made by the Federal Government and such rules shall provide for a reasonable opportunity for the Member or the Chairman to be heard in defence.

(3) A Member or the Chairman may resign his office at any time by notice in writing addressed to the Federal Government.

(4) A vacancy in the Commission caused by the death, resignation or removal of any Member or the Chairman shall be filled by the Federal Government within thirty days of the occurrence of such vacancy.

20. Commission Fund.— (l) There shall be established a fund to be known as the "CCP Fund" which shall vest in the Commission and shall be utilized by the Commission to meet charges in connection with the functioning of the Commission including payment of salaries and other remuneration to the Chairman, Members, officers, officials, experts, advisers, and consultants of the Commission.

(2) The Fund shall consist of,

(a) allocations or grants by the Federal Government;

(b) charges and fees levied by the Commission;

(c) contributions from local and foreign donors or agencies with the approval of the Federal Government;

(d) returns on investments and income from assets of the Commission; and

(e) all other sums which may in any manner become payable to or vested in the Commission;

(f) a percentage of the fees and charges levied by other regulatory agencies in Pakistan as prescribed by the Federal Government in consultation with the Commission and the percentage so prescribed shall not be varied to the disadvantage of the Commission.

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(3) The Commission shall make regulations for incurring expenditures as well as investments from the Fund.

(4) The Commission may open and maintain accounts at such scheduled banks as it may from time to time determine. The Commission may with the approval of the Federal Government, open and maintain foreign currency accounts.

21. Accounts and audits.— (1) The Commission shall cause proper accounts to be kept and shall as soon as practicable after the end of each financial year cause to be prepared for that financial year a statement of accounts of the Commission which shall include a balance sheet and an account of income and expenditure.

(2) Within sixty days after the end of each financial year, the annual financial statements of the Commission shall be audited by the Auditor-General of Pakistan or by a firm of chartered accountants nominated by the Auditor-General of Pakistan.

(3) The auditors shall make a report to the commission upon the balance sheet and accounts and in such report they shall state whether in their opinion the balance sheet is a full and fair balance sheet containing all necessary particulars and properly drawn up so as to exhibit a true and correct view of the affairs of the Commission and, in case they have called for any explanation or information from the Commission, whether it has been given and whether it is satisfactory.

22. Annual report.— (1) Within ninety days from the end of each financial year, the Commission shall cause a report to be prepared on the activities of the Commission (including investigations, advocacy activities, enquiries and merger reviews made by the Commission) during that financial year.

(2) The Commission shall, within one hundred and twenty days of the end of each financial year send a copy of the annual report of the Commission under sub-section (1) together with a copy of the statement of accounts of the Commission certified by the auditors and a copy of the auditors' report to the Federal Government which shall cause them to be published in the official Gazette and laid before both Houses of the Majlis-e-Shoora (Parliament) within two months of their receipt.

23. Appointments by Commission.— (1) The Commission may appoint such officers, officials, experts, advisers and consultants as it considers necessary to carry out such functions as may be prescribed by the Commission with such powers and on such terms and conditions as it may determine from time to time.

(2) The Commission may, by notification in the official Gazette, make regulations in respect of the terms and conditions of service of its employees.

24. Meetings of Commission.— (1) Subject to this section, the Chairman may convene such meetings of the Commission at such times and places as he considers necessary for the efficient performance of the functions of the Commission.

(2) The Chairman shall preside at every meeting of the Commission, and in the absence of Chairman, the Members may elect a Member to preside at the meeting.

(3) At any meeting of the Commission the quorum shall be three Members.

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(4) All questions arising at any meeting of the Commission shall be determined by a majority of votes of the Members present and voting.

(5) In the event of an equality of votes, the Chairman shall have a casting vote.

(6) Subject to the provisions of this Act, the Chairman may give directions regarding the procedure to be followed at or in connection with any meeting of the Commission.

25. Disclosure of interest by Members.— (1) For the purpose of this and the next following section, a person shall be deemed to have an interest in a matter if he has any interest, pecuniary or otherwise, in such matter which could reasonably be regarded as giving rise to a conflict between his duty to honestly perform his functions under this Act and such interest, so that his ability to consider and decide any question impartially or to give any advice without bias, may reasonably be regarded as impaired.

(2) A Member having any interest in any matter to be discussed or decided by the Commission shall, prior to any discussion of the matter, disclose in writing, to the Commission, the fact of his interest and the nature thereof.

(3) A disclosure of interest under sub-section (2) shall be recorded in the minutes of the Commission, prior to any discussion of, or decision on, the matter and, after the disclosure, the Member:—

(a) shall not, save in the cases provided in sub-sections (4) to (6), take part nor be present in any deliberation or decision of the Commission; and

(b) shall be disregarded for the purpose of constitution of a quorum of the Commission.

(4) If a Member is not the Chairman and the Chairman becomes aware that a Member has a conflict of interest, the Chairman shall:—

(a) if the Chairman considers that the Member should not take part, or continue to take part, as the case may require, in determining the matter, direct the Member accordingly; or

(b) in any other case, cause the Member's interest to be disclosed to the persons concerned in the matter including any person whose application is pending decision or adjudication by the Commission, the Member in respect of whom a direction has been given under clause (a) shall comply with the direction.

(5) If the Member is the Chairman, he shall disclose his interest to the persons concerned in the matter including any person whose application is pending decision or adjudication by the Commission.

(6) Subject to sub-section (4), the Chairman or the Member who has any interest in any matter referred to in this section shall not take part, or continue to take part, as the case may require, in determining the matter unless everyone concerned in it consents to the Chairman or, as the case may be, the Member so taking part.

26. Notification of interest by staff of Commission.— (1) Where a person who, in the course of—

(a) performing a function, or exercising a power, as an officer of the Commission,

(b) performing functions or service as an employee, or

(c) performing a function or services in any capacity by way to assisting or advising the Commission, or any officer of the Commission, is required to consider a matter in which he has an interest, such person shall forthwith give to the Commission a written notice stating that he is required to consider the matter and has an interest in it and setting out particulars of the interest.

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(2) The person referred to in sub-section (1) shall also declare his interest in accordance with the said sub-section whenever it is necessary to avoid the conflict of interest.

27. Officers and employees, etc., to be public servants.— The Chairman, Members, employees, experts, consultants and advisers of the Commission authorized to perform any function or exercise any power under this Act shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code, 1860 (Act XLV of 1860).

CHAPTER-IV

FUNCTIONS AND POWERS OF THE COMMISSION

28. Functions and powers of the Commission.— (1) The functions and powers of the Commission shall be—

(a) to initiate proceedings in accordance with the procedures of this Act and make orders in cases of contravention of the provisions of the said Act;

(b) to conduct studies for promoting competition in all sectors of commercial economic activity;

(c) to conduct enquiries into the affairs of any undertaking as may be necessary for the purposes of this Act;

(d) to give advice to undertakings asking for the same as to whether any action proposed to be taken by such undertakings is consistent with the provisions of this Act, rules or orders made thereunder;

(e) to engage in competition advocacy; and

(f) to take all other actions as may be necessary for carrying out the purposes of this Act.

(2) The Commission may, subject to such conditions as it may think fit to impose, delegate all or any of its functions and powers to any of its Members or officers as it deems fit.

29. Competition advocacy.— The Commission shall promote competition through advocacy which, among others, shall include—

(a) creating awareness and imparting training about competition issues and taking such other actions as may be necessary for the promotion of a competition culture;

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(b) reviewing policy frameworks for fostering competition and making suitable recommendations for amendments to this Act and any other laws that affect competition in Pakistan to the Federal Government and Provincial Governments;

(c) holding open hearings on any matter affecting the state of competition in Pakistan or affecting the country's commercial activities and expressing publicly an opinion with respect to the issues; and

(d) posting on its website all decisions made, inquiries under review and completed, merger guidelines, educational material and the like.

30. Proceedings in cases of contravention.— (1) Where the Commission is satisfied that there has been or is likely to be, a contravention of any provision of Chapter II, it may make one or more of such orders specified in section 31 as it may deem appropriate. The Commission may also impose a penalty at rates prescribed in section 38, in all cases of contravention of the provisions of Chapter II.

(2) Before making an order under sub-section (1), the Commission shall—

(a) give notice of its intention to make such order stating the reasons therefore to such undertaking as may appear to it to be in contravention; and

(b) give the undertaking an opportunity of being heard on such date as may be specified in the notice and of placing before the Commission facts and material in support of its contention:

Provided that in case the undertaking does not avail the opportunity of being heard, the Commission may decide the case *ex parte*.

(3) The Commission shall publish its Orders in the official Gazette, for the information of the public.

(4) An order made under sub-section (1) shall have effect notwithstanding anything to the contrary contained in any other law for the time being in force or in any contract or memorandum or articles of association.

(5) Any order issued under this section shall include the reasons on which the order is based.

31. Orders of the Commission.— The Commission may in the case of—

(a) an abuse of dominant position, require the undertaking concerned to take such actions specified in the order as may be necessary to restore competition and not to repeat the prohibitions specified in Chapter II or to engage in any other practice with similar effect; and

(b) prohibited agreements, annul the agreement or require the undertaking concerned to amend the agreement or related practice and not to repeat the prohibitions specified in section 4 or to enter into any other agreement or engage in any other practice with a similar object or effect; or

(c) a deceptive marketing practice, require—

(i) the undertaking concerned to take such actions specified in the order as may be necessary to restore the previous market conditions and not to repeat the prohibitions specified in section 10; or

(ii) confiscation, forfeiture or destruction of any goods having hazardous or harmful effect.

(d) A merger, in addition to the provisions contained in section 11—

(i) authorize the merger, possibly setting forth the conditions to which the acquisition is subject, as prescribed in regulations;

(ii) decide that it has doubts as to the compatibility of the merger with Chapter II, thereby opening a second phase review; or

(iii) undo or prohibit the merger, but only as a conclusion of the second phase review.

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32. Power to issue interim orders.— (1) Where, during the course of any proceeding under section 30, the Commission is of opinion that the issuance of a final order in the proceedings is likely to take time and that, in the situation that exists or is likely to emerge, serious or irreparable damage may occur and an interim Order is necessary in the public interest, it may, after giving the undertaking concerned an opportunity of being heard, by order, direct such undertaking to do or refrain from doing or continuing to do any act or thing specified in the order.

(2) An order made under sub-section (1) may, at any time, be reviewed, modified or cancelled by the Commission and, unless so cancelled, shall remain in force for such period as may be specified therein but not beyond the date of the final order made under section 31.

33. Powers of the Commission in relation to a proceeding or enquiry.— (1) The Commission shall, for the purpose of a proceeding or enquiry under this Act, have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (Act V of 1908), while trying a suit, in respect of the following matters, namely:

(a) summoning and enforcing the attendance of any witness and examining him on oath;

(b) discovery and production of any document or other material object producible as evidence;

(c) accept evidence on affidavits;

(d) requisitioning of any public record from any court or office; and

(e) issuing of a commission for the examination of any witness, document or both.

(2) Any proceeding before the Commission shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the Pakistan Penal Code (Act XLV of 1860), and the Commission shall be deemed to be civil court for the purposes of section 195 and Chapter XXXV of the code of Criminal Procedure, 1898 (Act V of 1898).

(3) The Commission may, for the purpose of a proceeding or enquiry under this Act, require any undertaking:

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(a) to produce before, and to allow to be examined and kept by, an officer of the Commission specified in this behalf, any books, accounts, or other documents in the custody or under the control of the undertaking so required, being documents relating to any matter the examination of which may be necessary for the purposes of this Act; and

(b) to furnish to an officer so specified such information in its possession, relating to any matter as may be, necessary for the purpose of this Act.

34. Power to enter and search premises.— (1) Notwithstanding anything contained in any other law for the time being in force, the Commission for reasonable grounds to be recorded in writing shall have the power to authorize any officer to enter and search any premises for the purpose of enforcing any provision of this Act.

(2) For the purpose of sub-section (1), the Commission—

(a) shall have full and free access to any premises, place, accounts, documents or computer;

(b) may stamp, or make an extract or copy of any accounts, documents or computer-stored information to which access is obtained under clause (a);

(c) may impound any accounts or documents and retain them for as long as may be necessary for the purposes of the Act;

(d) may where a hard copy or computer disk of information stored on a computer is not made available, impound and retain the computer for as long as is necessary to copy the information required; and

(e) may make an inventory of any article found in any premises or place to which access is obtained under clause (a).

(3) Any officer of the Commission who seeks to exercise the right to enter and search premises shall be required to provide evidence of his authority to act on behalf of the Commission.

(4) The Commission may authorize any valuer to enter any premises or place to inspect such accounts and documents as may be necessary to enable the valuer to make a valuation of an asset for the purpose of this Act.

(5) The occupier of any premises or place to which access is sought under sub-section (1) shall provide all reasonable facilities and assistance to ensure the effective exercise of the right of access.

(6) Any accounts, documents or computer impounded and retained under sub-section (2) and (3) shall be signed for by the Commission or an authorized officer.

(7) An undertaking whose accounts, documents or computer have been impounded and retained under sub-section (2) may examine them and make an extract or copy from them during regular office hours under such supervision as the Commission may determine.

Explanation.— In this section, the expression "Occupier", in relation to any premises or place, includes the owner, manager or any other person found present on the premises or place.

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35. Forcible entry.— (l) In the event that an undertaking refuses without reasonable cause to allow the Commission to exercise the powers contained in section 34, an investigating officer of the Commission may by written order, signed by any two Members enter any place or building by force, if necessary.

(2) Notwithstanding anything contained in sub-section (1), no investigating officer of the Commission shall enter any premises by the use of force without a written order of the Commission signed by two Members.

(3) If, on enquiry conducted in accordance with the rules it is found that the exercise by an investigating officer of his power under sub-section (2) was vexatious, excessive or with *mala fide* intent such officer shall be dismissed from service, and shall be guilty of an offence and shall be liable on conviction to a fine which may extend to five hundred thousand rupees or to imprisonment for a term not exceeding one year or both.

(4) Whenever a criminal court imposes a fine under sub-section (3) it shall, when passing judgment, order that a sum equal to the whole or any part of the fine recovered, be paid to the person on whose complaint the investigating officer was convicted, and in case the fine is not recovered the sum shall be paid out of the Fund.

(5) Any sum paid under sub-section (4) shall be without prejudice to the right of the aggrieved person to avail any other remedies available to him under the law but at the time of awarding compensation in any subsequent proceedings relating to the, same matter the court shall take into account any sum recovered from the convict and paid to the aggrieved person.

36. Power to call for information relating to undertaking.— Notwithstanding anything contained in any other law for the time being in force, the Commission may, by general or special order, call upon an undertaking to furnish periodically or as and when required any information concerning the activities of the undertaking, including information relating to its organization, accounts, business, trade practices, management and connection with any other undertaking, which the Commission may consider necessary or useful for the purposes of this Act.

37. Enquiry and studies.— (1) The Commission may, on its own, and shall upon a reference made to it by the Federal Government, conduct enquiries into any matter relevant to the purposes of this Act.

(2) Where the Commission receives from an undertaking or a registered association of consumers a complaint in writing of such facts as appear to constitute a contravention of the provisions of Chapter II, it shall, unless it is of opinion that the application is frivolous or vexatious or based on insufficient facts, or is not substantiated by prima facie evidence, conduct an enquiry into the matter to which the complaint relates.

(3) The Commission may outsource studies by hiring consultants on contract.

(4) If upon the conclusion of an inquiry under sub-section (1) or sub-section (2), the Commission is of opinion that the findings are such that it is necessary in the public interest so to do, it shall initiate proceedings under section 30.

CHAPTER-V

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PENALTIES AND APPEALS

38. Penalty.— (1) The Commission may by order direct any undertaking or any director, officer or employee of an undertaking, to pay by way of penalty such sum as may be specified in the order if, after giving the undertaking concerned an opportunity of being heard, it determines that such undertaking:—

(a) has been found engaged in any activity prohibited under this Act;

(b) has failed to comply with an order of the Commission made under this Act;

(c) has failed to supply a copy of the agreement or any other documents and information as required under this Act or requisitioned by the Commission;

(d) has furnished any information or made any statement to the Commission which such undertaking knows or has reason to believe to be false or found by the Commission to be inaccurate; or

(e) knowingly abuses, interferes with, impedes, imperils, or obstructs the process of the Commission in any manner:

Provided that fair comments made in good faith and in the public interest on the working of the Commission or on any order of the Commission issued after the completion of any proceedings, shall not be subject to the imposition of a penalty.

(2) The Commission may impose penalties at the following rates, namely:—

(a) for a contravention of any provision of Chapter II of the Act, an amount not exceeding seventy-five million rupees or an amount not exceeding ten percent of the annual turnover of the undertaking, as may be decided in the circumstances of the case by the Commission; or

(b) for non-compliance of any order, notice or requisition of the Commission an amount not exceeding one million rupees, as may be decided in the circumstances of the case by the Commission; and

(c) for clause (e) in sub-section (1), an amount not exceeding one million rupees as may be decided in the circumstances of the case by the Commission.

(3) If the violation of the order of the Commission is a continuing one, the Commission may also direct the undertaking guilty of such violation shall pay by way of penalty a further sum which may extend to one million rupees for every day after the first such violation.

(4) Any penalty imposed under this Act shall be recoverable as provided in section 40.

(5) Notwithstanding anything contained in this Act or any other law for the time being in force, failure to comply with an order of the Commission shall constitute a criminal offence punishable with imprisonment for a term which may extend to one year or with fine which may extend to twenty five million rupees and the Commission may, in addition to, or in lieu of, the penalties prescribed in this Act, initiate proceedings in a Court of competent jurisdiction.

39. Leniency.— (l) The Commission may, if it is satisfied that any undertaking which is a party to a prohibited agreement and is alleged to have violated Chapter II prohibitions, has made a full and true disclosure in respect of the alleged violation, impose on such undertaking a lesser penalty as it may deem fit, than that provided in section 38.

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(2) Any exemption from a penalty or imposition of a lesser penalty shall be made only in respect of an undertaking that is a party to a prohibited agreement which first made the full and true disclosure under this section.

(3) The Commission may, if it is satisfied that any undertaking which has been granted lenient treatment under sub-section (1) failed to comply with the conditions on which a lesser penalty was imposed had given false evidence, revoke the leniency provision and impose on the undertaking the penalty provided under section 38.

40. Recovery of penalties.— (1) For the recovery of any amount from an undertaking, the Commission may serve upon the concerned person or the chief executive or director of the said undertaking, a copy of a notice in the prescribed form requiring such person to pay the said amount within the time specified in the notice.

(2) If the amount referred to in the notice under sub-section (1) is not paid within the prescribed time, the Commission may proceed to recover the said amount from the person or undertaking in default in any one or more of the following manners, namely:—

(a) attachment of immovable or sale of any movable property, including bank account of the person or undertaking;

(b) appointment of a receiver for the management of the movable or immovable property of the person or undertaking;

(c) recovery of the amount as arrears of land revenue through the District Revenue Officer;

(d) require any of the following, by notice in writing, the person to deduct and pay the sum specified in the notice on or before such date as may be so specified, namely:—

(i) from whom any money is due or may become due to the undertaking;

(ii) who holds, or controls the receipt or disposal of or may subsequently hold, or control the receipt or disposal of, any money belonging to the undertaking or on account of the undertaking; or

(iii) who is responsible for the payment of any sum to the undertaking.

(3) Any bank, receiver, District Revenue Officer or undertaking who has paid any sum in compliance with a notice under sub-section (2) shall be deemed to have paid such sum to the Commission in respect of the undertaking, and the receipt of the Commission shall constitute a good and sufficient discharge of the liability of such bank, receiver, District Revenue Officer or undertaking to the extent of the sum referred to in such receipt.

(4) If any bank, receiver, District Revenue Officer or undertaking on whom a notice is served, fails to attach, receive, recover, deduct and pay, as the case may be, the amount specified in the said notice, such bank, receiver, District Revenue Officer or undertaking shall be treated as a defaulter and the amount specified in the said notice shall be recoverable from him or it, as the case may be, by the Commission in accordance with the provisions of this Act.

(5) The Commission may, by order, direct any bank, receiver, District Revenue Officer or undertaking which is a defaulter as referred to in sub-section (4), to pay by way of penalty, such sum as specified in the order, after giving to the bank, receiver, District Revenue Officer or undertaking an opportunity of being heard, it determines that such bank, receiver, District Revenue Officer or undertaking has wilfully failed to comply with the order of the Commission.

(6) For the purposes of the recovery of the amount under sub-section (2), the Commission shall have the same powers as a civil court has under the Code of Civil Procedure 1908 (Act V of 1908).

(7) The Commission may make rules regulating the procedure for the recovery of amounts under this section and any other matters connected with or incidental to the operation of this section.

(8) All penalties and fines recovered under this Act shall be credited to the Public Account of the Federation.

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41. Appeal to the Appellate Bench of the Commission.— (1) An appeal shall lie to an Appellate Bench of the Commission in respect of an order made by any Member or authorized officer of the Commission. The person aggrieved by such order may, within thirty days of the passing of the order submit an appeal, to the Appellate Bench of the Commission.

(2) The Commission shall constitute Appellate Benches comprising not less than two Members to hear appeals under sub-section (1).

(3) The decisions of the Appellate Bench shall be made unanimously or by a majority of votes if the Appellate Bench comprises of more than two members. In the event of a split verdict, the original order appealed against shall hold and have effect as the final order of the Commission.

(4) No Member shall be included in an Appellate Bench who has participated or been involved in the decision being appealed against.

(5) The form in which an appeal is to be filed and the fees to be paid therefore and other related matters shall be prescribed by rules.

42. Appeal to the Court.— Any person aggrieved by an order of the Commission comprising two or more Members or of the Appellate Bench of the Commission may within sixty days of the communication of the order, prefer appeal to the Competition Appellate Tribunal.

43. Competition Appellate Tribunal.— (1) As soon as may be within thirty days of he commencement of this Act, the Federal Government shall constitute the Competition Appellate Tribunal which shall consist of a Chairperson who shall be a person who has been a judge of the Supreme Court or is a retired Chief Justice of a High Court and two technical members who shall be persons of ability, integrity and have special knowledge and professional experience of not less than ten years in international trade, economics, law, finance and accountancy.

(2) The Chairperson and members shall hold office for a period of three years and shall be eligible for reappointment for a similar term and shall cease to hold office on attaining the age of sixty-eight years or the expiry of the term whichever is earlier.

(3) The Chairperson and the members shall be entitled to such salary and other terms and conditions of service as the Federal Government may by rules prescribe.

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(4) The Competition Appellate Tribunal may, in consultation with the Federal Government, make rules governing procedure in proceedings before the Tribunal.

(5) The Competition Appellate Tribunal shall decide an appeal expeditiously within six months of its presentation to the Tribunal.

44. Appeal to Supreme Court.— Any person aggrieved by an order of the Competition Appellate Tribunal may prefer an appeal to Supreme Court within sixty days.

CHAPTER-VI

GENERAL

45. Common seal.— (l) The Commission shall have a common seal which shall be kept in the custody of the Chairman or such other person as may be authorized by the Chairman by regulations made by the Commission.

(2) Documents required or permitted to be executed under the seal shall be specified and authenticated in such manner as shall be authorized by regulations.

46. Service of notices and other documents.— For the purpose of this Act any notice, requisition, letter or order required to be served on an undertaking shall be treated as properly served on the undertaking, if such service is made in the manner prescribed for the service of a summons under the Code of Civil Procedure, 1908 (V of 1908) or as may be prescribed by the Commission.

47. Compensation.— (1) No undertaking shall be entitled to or be paid any compensation or damages by the Commission for any loss or injury suffered on account of the termination of any agreement or employment or the divestment of any share or property or any other action taken in pursuance of any order made under this Act.

(2) Nothing in sub-section (1) shall prevent an undertaking from recovering compensation or damages from any other party for any loss or injury suffered on account of the termination of any agreement or employment or the divestment of any share or property or any other action taken in pursuance of any order made under this Act.

48. Indemnity.— Subject to sub-section (3) of section 35 no suit, prosecution or other legal proceeding shall lie against the commission or any Member, officer or servant of the Commission for anything in good faith done or intended to be done under this Act or any regulations or order made thereunder.

49. Agreement for exchange of information.— The Commission may, with approval of the Federal Government, enter into agreement with competition agencies in any part of the world for the exchange and assistance in performance of its function under this Act.

50. Sharing and supply of information.— In order that information relevant to the performance of its functions is available to the Commission and for carrying out the purposes of this Act,—

(a) all offices and agencies of the Federal Government and Provincial Government shall supply free of cost or charges information requested by the Commission in the discharge of its functions under this Act; and

(b) the State Bank of Pakistan, Security and Exchange Commission of Pakistan, the Central board of Revenue, the Federal Bureau of Statistics and all regulatory authorities shall arrange to provide requisite information as permissible under their own laws to the Commission, from time to time, at its request in the discharge of its functions under this Act.

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51. Obligation of confidentiality.— (1) Subject to this section, any person who is or was at any time,—

(a) acting as a Member of the Commission, or

(b) engaged as an officer or employee of the Commission, or

(c) authorized to perform or exercise any function or power of the Commission or any function or power on behalf of the Commission or to render services to the Commission in the capacity of a consultant or adviser;

shall not, except to the extent necessary to perform his official duties, or in the performance or exercise of such a function or power, either directly or indirectly, make a record of, or disclose to any person, any information that is or was acquired by him because of having been so appointed, engaged or authorized, or make use of any such information, for any purpose other than the performance of his official duties or the performance or exercise of that function or power.

(2) Any person who contravenes sub-section (1) shall be guilty of an offence which shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to one million rupees or with both.

(3) The Commission shall take all reasonable measures to protect from unauthorized use or disclosure of the information given to it in confidence in connection with the performance of its functions or the exercise of its powers.

(4) For the purpose of sub-section (1) the disclosure of information as required or permitted by any law for the time being in force in Pakistan or any other jurisdiction shall be taken to be authorized use and disclosure of the information.

(5) For the purposes of sub-section (1), the disclosure of information by a person for the purposes of:—

(a) performing his functions as,—

(i) a Member or employee of the Commission;

(ii) an officer, or employee or who is authorized to perform or exercise a function or power of, or on behalf of, the Commission; or

(b) the performance of functions or service by the person by way of assisting a Member or an officer of the Commission,

shall be taken to be authorized use and disclosure of the information.

(6) Where the Chairman is satisfied that any particular information,—

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(a) may enable or assist the Commission to perform or exercise any of its functions or powers;

(b) may enable or assist the Federal Government, or an agency of the Federal Government to perform a function or exercise a power; or

(c) may enable or assist the Federal Government, an agency of the Federal Government, or of a foreign country to perform a function, or exercise a power, conferred by a law in force in that foreign country,

the disclosure of the information to such persons by a person whom the Chairman authorizes for the purpose shall be taken to be authorized use and disclosure of the information.

(7) The Chairman may impose conditions to be complied with in relation to information disclosed under sub-section (6).

(8) The Chairman may delegate all or any of his functions and powers under sub-sections (6) and (7) to a Member or an officer of the Commission.

(9) Nothing in any of sub-sections (4), (5), (7) and (8) shall limit what may otherwise constitute, for the purposes of sub-section (1), authorized use or disclosure of information.

52. Permitted disclosure.— Nothing in section 49 shall preclude a person from,—

(a) producing a document to a court in the course of criminal proceedings or in the course of any proceedings under this Act, the Act or any other law for the time being in force;

(b) disclosing to a court in the course of any proceedings referred to in clause (a) any matter or thing, that came under his or her notice in the performance of his or her official duties or in the performance of a function or the exercise of a power referred to in that section;

(c) producing a document or disclosing information to a person to whom, in the opinion of the Commission, it is in the public interest that the document be produced or the information be disclosed;

(d) producing a document or disclosing information that is required or permitted by any law for the time being in force in Pakistan or any other jurisdiction to be produced or disclosed, as the case may be; or

(e) producing a document or disclosing information to the Commission.

53. Assistance and advice to the Commission.— (1) The Commission may seek the assistance of any person, authority or agency for the performance of its functions under this Act.

(2) All officers of an agency and any person whose assistance has been sought by the Commission in the performance of its functions shall render such assistance to the extent it is within their power or capacity.

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(3) Subject to sub-section (3) of section 35, no statement made by a person or authority in the course of giving evidence before the Commission or its staff shall use against him or subject such person or authority to civil or criminal proceedings except for prosecution of such person or authority for giving false evidence.

54. Power to exempt.— The Federal Government may, by notification in the official Gazette, exempt from the application of this Act or any provision thereof and for such period as it may specify in such notification,—

(a) any class of undertaking if such exemption is necessary in the interest of security of the State or public interest;

(b) any practice or agreement arising out of and in accordance with any obligation assumed by Pakistan under any treaty, agreement or convention with any other State or States; or

(c) any undertaking Which performs a sovereign function on behalf of the Federal Government or a Provincial Government.

55. Act not to apply to trade unions.— Nothing in the Act shall apply to trade unions or its member functioning in accordance with any law pertaining to trade unions for the time being in force.

56. Powers of the Federal Government to issue directives.— The Federal Government may, as and when it considers necessary, issue policy directives to the Commission, not inconsistent with the provisions of this Act, and the Commission shall comply with such directives.

57. Power to make rules.— (1) Subject to sub-section (2), the Commission may, by notification in the official Gazette and with the approval of Federal Government, make rules for all or any of the matters in respect of which it is required to make rules or to carry out the purposes of this Act.

(2) The power to make rules conferred by this section, except for the first occasion, shall be subject to the condition of previous publication and before making any rules the draft thereof shall be published in the official Gazette for eliciting public opinion thereon within a period of not less than thirty days from the date of publication.

58. Power to make regulations.— (1) Subject to sub-section (2), the Commission may, by notification in the official Gazette, make such regulations as may be required to carry out the purposes of this Act.

(2) The power to make regulations conferred by this section, except for the first occasion, shall be subject to the condition of previous publication and before making any regulations the draft thereof shall be published in two newspapers of wide circulation for eliciting public opinion thereon within a period of not less than thirty days from the date of publication.

59. Act to override other laws.— The provisions of this Act shall have effect notwithstanding anything to the contrary contained in any other law for the time being in force.

60. Removal of difficulties.— If any difficulty arises in giving effect to the provisions of this Act, the Commission may make such order, not inconsistent with the provisions of this Act, as may appear to it to be necessary for the purpose of removing the difficulty.

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61. Repeals and savings.— On the commencement of this Act—

(a) the Monopolies and Restrictive Trade Practices (Control and Prevention) Ordinance, 1970 (V of 1970), hereinafter referred to as the repealed Act, shall stand repealed;

(b) the Monopoly Control Authority established under the repealed Act shall stand dissolved;

(c) all assets, rights, powers, authorities and privileges and property, movable and immovable, cash and bank balances, reserve funds, investments and all other interests and rights in, or arising out of such property and all debts, liabilities and obligations of whatever kind of the Monopoly Control Authority subsisting immediately before its dissolution shall stand transferred to and vest in the Competition Commission of Pakistan established under this Act;

(d) no officer, employee, servant, or any other person holding any post in connection with the affairs of the Monopoly Control Authority shall have any

right or lien to appointment to any post in the Competition Commission of Pakistan established under this Act;

(e) officers, employees, servants, or any other person holding any post in connection with the affairs of the Monopoly Control Authority, not considered for appointment in the Commission shall have the option to be discharged from service on payment of admissible relieving benefits, or alternatively, their services shall be placed at the disposal of the Finance Division for absorption on the terms and conditions to be determined by that Division but not less favorable than those which they were entitled to in Monopoly Control Authority, and unless sooner they are absorbed elsewhere they shall continue to draw their pay, allowances, privileges or other benefits from the Commission as they were drawing while holding their posts in the Authority;

(f) save as otherwise provided in clause (c), all the debts and obligations incurred or contracts entered into or rights acquired and all matters and things engaged to be done by, with or for the Monopoly Control Authority before the enforcement of this Act shall be deemed to have been incurred, entered into, acquired or engaged to be done by with or for the Commission, established under this Act, as the case may be; and

(g) all suits and other legal proceedings instituted by or against the Monopoly Control Authority before the commencement of this Act shall be deemed to be suits and proceedings by or against the Competition Commission of Pakistan as the case may be and may proceed and be dealt with accordingly.

62. Validation of actions, etc.— Anything done, actions taken, orders passed, instruments made, notifications issued, agreements made, proceedings initiated, processes or communication issued, power conferred, assumed or exercised, by the Commission or its officers on or after the 2nd October, 2007 and before the commencement of this Act, shall be deemed to have been validly done, made, issued, taken, initiated, conferred, assumed, and exercised and provisions of the Act shall have, and shall be deemed always to have had, effect accordingly.

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THE CENTRAL EXCISE DUTY ON SUGAR (VALIDATION) ORDINANCE, 1979

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2. Validation of levy and collection of central excise duty on enhanced rate, etc.

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THE CENTRAL EXCISE DUTY ON SUGAR (VALIDATION) ORDINANCE, 1979.

ORDINANCE No. XXXIV OF 1979

[16th July, 1979]

An Ordinance to validate the levy and collection of excise duty on enhanced rate on stocks of sugar held by sugar mills on the 7th June, 1975.

WHEREAS it is expedient to validate the levy and collection of excise duty on enhanced rate on stocks of sugar held by sugar mills on the 7th June, 1975, and to provide for the collection of excise duty on such enhanced rate on the said stocks;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July 1977, read with the Laws (Continuance in Force) Order, 1977 (*C. M. L. A. Order No. 1 of 1977*), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.— (1) This Ordinance may be called the Central Excise Duty on Sugar (Validation) Ordinance, 1979.

(2) It shall come into force at once.

2. Validation of levy and collection of central excise duty on enhanced rate, etc.— Notwithstanding anything contained in the Central Excise and Salt Act, 1944 (I of 1944) or in any rule or notification made or issued thereunder, or in any judgment of a Court, the central excise duty levied and collected on stocks of sugar held by sugar mills on 7th June, 1975, at the rate of twenty-seven rupees and twenty-two paisa per cwt in additional to the excise duty chargeable from the sugar mills under subsection (4) of section 3 of the said Act for the year 1974-75 shall be deemed to have been validly levied and collected and shall not be liable to be refunded and so much of such duty as has not been paid, collected or realised before the corning into force of this Ordinance shall be recoverable in accordance with provisions of the said Act and the rules made thereunder.

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Date: 13-09-2024